COLD PAPER WAR

THE PRO SE LITIGATION GUIDE

VOLUME 6 — STATE-COURT LITIGATION & ADMINISTRATIVE LAW

State Courts • Administrative Agencies • Public Records • Judicial Review • State Constitutional Claims • Appeals

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> "Federal court is one battlefield. State government is an entire legal ecosystem."

LEGAL AND EDITORIAL NOTICE

This volume is an educational litigation-planning resource, not legal advice. State-court and administrative litigation differ substantially by jurisdiction. A litigant must verify the current state constitution, statutes, procedural rules, administrative regulations, local rules, agency procedures, appellate rules, filing requirements, and applicable deadlines.

This volume uses general terminology and is intended as a framework for organizing research. Massachusetts and New Hampshire procedures, for example, can differ materially from one another and from federal practice.

Do not assume that a federal procedural rule automatically applies in state court.

CORE PRINCIPLE

Identify the source of authority before choosing the procedural weapon.

A state-government dispute may involve several separate systems:

Agency decision → administrative remedy → judicial review → state constitutional claim → statutory claim → common-law claim → appellate review.

The correct path depends upon the specific governmental action and governing law.

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1. UNDERSTANDING THE STATE LEGAL ECOSYSTEM

State litigation is not simply federal litigation with a different courthouse.

State governments contain multiple layers:

- legislature;
- governor;
- executive agencies;
- municipalities;
- commissions;
- licensing bodies;
- administrative hearing officers;
- trial courts;
- appellate courts;
- state supreme court;
- quasi-public authorities.

Each may operate under different statutory and procedural authority.

The first research question is therefore:

Which governmental body made the decision being challenged?

The second is:

What law gives that body authority to act?

The third is:

What legal mechanism allows the plaintiff to challenge that action?

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2. STATE-COURT JURISDICTION

Before filing, identify the proper court.

Determine:

- subject-matter jurisdiction;
- territorial jurisdiction;
- personal jurisdiction where relevant;
- venue;
- statutory jurisdiction;
- appellate jurisdiction;
- exclusive versus concurrent jurisdiction.

A case filed in the wrong court may be delayed, dismissed, transferred, or otherwise procedurally impaired.

2.1 Jurisdiction Is Not a Technical Footnote

Jurisdiction can determine whether the court can provide the requested remedy at all.

The complaint should therefore identify the statutory or constitutional basis for jurisdiction rather than merely stating that the court has jurisdiction.

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3. ADMINISTRATIVE AGENCIES

Many disputes begin outside court.

Examples include:

- licensing;
- public benefits;
- housing;
- transportation;
- professional discipline;
- disability accommodations;
- environmental regulation;
- municipal enforcement;
- public-records disputes;
- employment regulation;
- land-use decisions.

Administrative agencies often have specialized procedures.

These can include:

- applications;
- notices;
- investigations;
- hearings;
- agency decisions;
- reconsideration;
- administrative appeals;
- judicial review.

The administrative file may eventually become the foundation for judicial review.

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4. EXHAUSTION OF ADMINISTRATIVE REMEDIES

Some claims require exhaustion of administrative remedies before judicial intervention.

Others do not.

The answer depends upon:

- the statute;
- the type of claim;
- the agency;
- the requested relief;
- the applicable case law;
- constitutional considerations.

Never assume either:

> “I must exhaust everything.”

or:

> “I can always go directly to court.”

Research the specific legal pathway.

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5. ADMINISTRATIVE RECORDS

When an agency makes a decision, build a complete administrative record.

Preserve:

- application;
- correspondence;
- notices;
- hearing requests;
- agency responses;
- investigative reports;
- exhibits;
- hearing transcripts;
- proposed findings;

- final decision;
- reconsideration requests;
- appeal documents.

Create a chronology.

Date → agency action → document → legal authority → response → next deadline.

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6. PUBLIC-RECORDS LITIGATION

Public-records laws can provide an independent mechanism for obtaining government information.

The exact statutory framework varies by jurisdiction.

A records strategy should identify:

- the records sought;
- the governmental custodian;
- applicable exemption;
- response deadline;
- fee rules;
- appeal mechanism;
- enforcement mechanism.

6.1 Precision Matters

Instead of requesting:

> “Everything about me.”

consider breaking the request into identifiable categories:

- incident reports;
- dispatch records;
- emails;
- policies;
- contracts;
- invoices;
- meeting records;
- photographs;
- video;

- database records;
- communications with identified agencies.

This makes compliance easier to evaluate.

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7. STATE CONSTITUTIONAL CLAIMS

State constitutions may provide rights that overlap with or differ from federal constitutional protections.

Potential subjects include:

- free speech;
- religious liberty;
- search and seizure;
- due process;
- equal protection;
- privacy;
- property;
- access to courts.

Do not assume that state constitutional provisions are interpreted identically to their federal counterparts.

Research the state's own constitutional jurisprudence.

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8. STATE CIVIL-RIGHTS STATUTES

Many states have statutory civil-rights protections in addition to federal law.

The litigant should identify:

- statutory elements;
- covered defendants;
- protected rights;
- prohibited conduct;
- causation requirements;
- exhaustion requirements;
- available damages;

- attorney-fee provisions;
- limitations periods;
- immunity defenses.

A state statutory claim can sometimes operate independently of a federal constitutional claim.

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9. DECLARATORY AND INJUNCTIVE RELIEF

State courts may provide declaratory or injunctive remedies where authorized.

A request should identify:

What governmental conduct is challenged?

What legal right is implicated?

Who is responsible?

What precise order is requested?

Avoid asking the court to supervise an entire government agency unless the governing law actually authorizes such relief.

Narrow relief is generally easier for a court to evaluate.

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10. MANDAMUS AND EXTRAORDINARY RELIEF

Mandamus and similar extraordinary remedies can be powerful but are generally not substitutes for ordinary litigation.

The governing requirements vary.

Potential questions include:

- Does the official owe a legally required duty?

- Is the duty sufficiently definite?
- Is the plaintiff legally entitled to performance?
- Is another adequate remedy available?
- Does the court have authority to issue the requested order?

The key distinction is often between:

a discretionary governmental decision

and

a legally required ministerial act.

The court's authority must be established before seeking extraordinary relief.

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11. ADMINISTRATIVE JUDICIAL REVIEW

Judicial review of agency action can be fundamentally different from an ordinary civil lawsuit.

The reviewing court may be evaluating an existing administrative record rather than conducting a completely new factual proceeding.

The litigant must determine:

- what record is reviewable;
- what standard of review applies;
- whether new evidence is permitted;
- what deference applies;
- what procedural defects are reviewable;
- whether remand is available;
- whether the court may substitute its judgment.

11.1 Standard of Review

Always identify the applicable standard.

Possible formulations may include:

- de novo review;
- substantial evidence;
- arbitrary or capricious review;
- abuse of discretion;

- error of law.

The governing statute and precedent control.

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12. STATE-COURT PLEADING

A state complaint should contain the information required by that jurisdiction.

Generally consider:

- caption;
- parties;
- jurisdiction;
- venue;
- factual allegations;
- causes of action;
- damages;
- requested equitable relief;
- jury demand where available;
- required disclosures;
- signature.

Do not automatically copy federal pleading language.

The state rules control.

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13. MOTIONS IN STATE COURT

Potential motions include:

- dismissal;
- summary judgment;
- discovery motions;
- protective orders;
- sanctions;
- preliminary injunction;
- reconsideration;
- judgment on the pleadings;

- procedural motions.

Each motion should be researched under the state rules.

A federal case citation may be persuasive but may not answer the state procedural question.

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14. EMERGENCY RELIEF

Emergency relief should identify the immediate problem.

A strong emergency filing answers:

What is happening now?

What will happen if the court does nothing?

What legal right is implicated?

What evidence establishes the risk?

Why are ordinary procedures inadequate?

What precise temporary order is requested?

Emergency relief should be narrow and enforceable.

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15. STATE DISCOVERY

State discovery can resemble federal discovery but should never be assumed to be identical.

Determine the applicable rules concerning:

- interrogatories;
- document requests;
- admissions;
- depositions;
- subpoenas;
- expert discovery;
- electronically stored information;

- privilege;
- sanctions.

Create a separate state discovery calendar.

Do not combine federal and state deadlines in one system without identifying which rules control each deadline.

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16. GOVERNMENT IMMUNITY

State and municipal immunity can be highly complex.

Potential issues include:

- sovereign immunity;
- governmental immunity;
- statutory immunity;
- qualified immunity;
- discretionary-function protections;
- public-official immunity;
- municipal immunity;
- notice requirements;
- damage caps;
- statutory prerequisites.

Before demanding damages against a governmental defendant, determine:

Is the claim permitted?

Is the defendant subject to suit?

Is notice required?

Is there a statutory cap?

Is the claim barred by immunity?

Is prospective relief available even if damages are restricted?

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17. MUNICIPAL LIABILITY UNDER STATE LAW

State municipal-liability doctrines may differ substantially from federal Monell doctrine.

Do not assume:

> Federal municipal liability = state municipal liability.

Instead identify:

- state statute;
- state constitutional doctrine;
- municipal-liability precedent;
- governmental immunity;
- notice requirements;
- available remedies.

The municipal theory should be independently researched.

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18. STATE APPEALS

Appeals are deadline-driven.

Immediately determine:

- whether the order is appealable;
- whether permission is required;
- filing deadline;
- notice requirements;
- record designation;
- transcript requirements;
- briefing schedule;
- standards of review.

18.1 Preserve the Trial Record

An appellate court generally reviews the record developed below.

Important issues should therefore be raised at the appropriate time.

Preserve:

- objections;
- offers of proof;
- proposed instructions;
- exhibits;
- motions;
- rulings;
- transcripts.

An argument not preserved may face significant appellate limitations.

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19. BUILDING A PARALLEL FEDERAL-STATE RECORD

When federal and state issues overlap, create a unified factual chronology but separate the legal analyses.

Example:

Same event

→ State statutory claim

→ State constitutional claim

→ Federal constitutional claim

→ Administrative claim

→ Municipal-liability theory

The facts may overlap.

The legal elements do not necessarily overlap.

This distinction prevents the common error of treating every claim as if it required the same proof.

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20. THE STATE-LAW LITIGATION AUDIT

Before filing, ask:

Jurisdiction

Which court has authority?

Defendant

Can this defendant legally be sued?

Immunity

Does immunity apply?

Administrative remedies

Must something happen before court review?

Notice

Is a statutory notice required?

Limitations

What is the limitations period?

Standard of review

If reviewing agency action, what standard applies?

Evidence

What record will the court consider?

Remedy

Can the requested relief legally be granted?

Appeal

What deadline begins if the court rules against you?

APPENDIX A — ADMINISTRATIVE CASE MATRIX

Issue	Agency	Authority	Required Step	Deadline	Result
Initial decision					
Reconsideration					
Administrative appeal					
Judicial review					
Emergency relief					

APPENDIX B — PUBLIC-RECORDS REQUEST MATRIX

Request	Custodian	Date	Statute	Response Due	Exemption	Appeal
Request 1						
Request 2						
Request 3						

APPENDIX C — STATE-COURT COMPLAINT ARCHITECTURE

Caption

Jurisdiction

Venue

Parties

Factual chronology

Count I — State statutory claim

Count II — State constitutional claim

Count III — Federal claim where appropriate

Count IV — Municipal or governmental claim where legally available

Damages

Declaratory relief

Injunctive relief

Jury demand

Prayer for relief

Signature

APPENDIX D — ADMINISTRATIVE-APPEAL CHECKLIST

□ Identify final agency decision.

□ Identify statutory authority.

□ Determine appeal deadline.

□ Obtain complete administrative record.

□ Identify standard of review.

□ Identify preserved objections.

□ Identify agency findings.

□ Identify alleged errors of law.

□ Identify evidentiary problems.

□ Identify requested remedy.

□ Verify filing procedure.

□ Preserve appellate deadline.

APPENDIX E — STATE-LAW DEADLINE DASHBOARD

Event	Trigger	Deadline	Authority	Completed
Agency response				
Administrative appeal				
Notice requirement				
Civil complaint				
Opposition				
Hearing				
Judgment				
Appeal				

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State litigation requires a different kind of discipline.

The federal system is only one layer of governmental accountability. State constitutions, statutes, administrative agencies, municipalities, public-records laws, and state appellate courts create additional legal mechanisms.

The mistake is treating all of those mechanisms as interchangeable.

The better approach is architectural:

Identify the government actor.

Identify the source of authority.

Identify the required administrative path.

Identify the correct court.

Identify the applicable immunity.

Identify the available remedy.

Preserve the record.

Then proceed.

The Cold Paper War is not about filing everywhere.

It is about knowing exactly **where the law requires the government to answer.**

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